

Narendra Kumar And Othes vs State Of U.P. And Another on 1 February, 2010

Author: Dasu Ram Azad

Bench: Dasu Ram Azad

Court No. - 53

Case :- APPLICATION U/S 482 No. - 5540 of 2005

Petitioner :- Narendra Kumar And Othes

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Mukhtar Alam, Mohd. Aslam Ansari

Respondent Counsel :- Govt. Advocate

Hon'ble Dasu Ram Azad, J.

(Court No.53) Criminal Misc. Application No. 5540 of 2005 ***
Narendra Kumar & others Vs. State of U.P. and another. Hon'ble D.R. Azad, J Heard learned counsel for the applicants, learned A.G.A. for the State and perused the material placed on record. This Criminal Misc. application under Section 482 Cr.P.C. has been filed with a prayer to quash the entire proceedings of Complaint Case No. 575 of 2004 (Smt. Kusum Vs. Narendra Kumar and others) under Section 406 I.P.C. Police Station Bargaon District Saharanpur pending in the Court of A.C.J.M. Deoband Saharanpur. Vide order dated 27.5.2005, after hearing counsel for the applicants and learned A.G.A. this Court was pleased to stay the operation of the order dated 27...4.2005 passed by the revisional court. Learned Counsel for the applicant has filed rejoinder affidavit dated 11.10.2009 in which in para No. 11, he has submitted that that the parties have entered into compromise and settled their dispute outside the court. The applicant no.1 is living separately and the Opp. Party no.2 has performed her marriage with another person. Suit under Section 13 of the Hindu Marriage Act was filed by the Opp. Party No. 2 which has been decreed by the court below on 13.7.2009 with the observation that the parties have entered into compromise outside the court and and there is no dispute and differences left between the parties and all disputes and differences have been amicably settled by the parties. Copy of the order dated 13.7.2009 is on record as Annexure R.A. 2.

Learned counsel for the applicants have placed reliance on the observations made by the Apex Court in the case of B.S. Joshi Vs. State of Haryana and another, reported in 2003 (46) A.C.C. 779 S.C. and in the case of

Ruchi Agrawal Vs. Amit Kumar Agrawal and others, reported in 2004 (3) J.I.C.769 S.C.. The Hon'ble Apex Court quashed the proceedings of criminal case on the basis of the compromise filed between the parties mainly on the ground that no lawful purpose would be served by continuance of the proceedings between the parties.

In view of the above decisions of the Hon'ble Apex Court, the proceedings of Complaint Case No. 575 of 2004 (Smt. Kusum Vs. Narendra Kumar and others) under Section 406 I.P.C. Police Station Bargaon District Saharanpur pending in the Court of A.C.J.M. Deoband Saharanpur.is hereby quashed.

Learned counsel for the applicant is directed to produce certified copy of this order before the A.C.J.M. Deoband Saharanpur for information and its compliance within a period of 15 days from the date a certified copy of this order is issued to him. With the aforesaid direction, this application is disposed of finally. Dt: 1.2.2010